

Mohd. Naushad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 July 2019 · WRIT - C No. 22638 of 2019 · **Writ dismissed; recovery citation for electricity dues upheld.**

HEADNOTE

A recovery citation for electricity dues as arrears of land revenue is not illegal where a Section 126 checking found unauthorised use, a provisional assessment was served by registered post, no objection was filed (the assessment being treated as final), and a later demand notice went unpaid. The consumer did not allege that unauthorised use was not found or that the provisional assessment was not served. The writ petition was dismissed.

FACTUAL SUMMARY

Mohd. Naushad challenged a 24 June 2019 recovery citation for Rs. 16,22,810 as electricity dues, alleging that Section 126 of the Electricity Act, 2003 had not been followed. A 16 April 2018 checking found him charging batteries of 20 e-rickshaws illegally from the line. A provisional assessment dated 18 April 2018 was sent by registered post. He filed no objection. A demand notice dated 17 April 2019 went unpaid, after which the citation issued.

HOLDING-UNITS

INTERPLAY · EA2003::126

unobjected provisional assessment and recovery citation

HOLDING

Where checking found unauthorised use, a Section 126 provisional assessment was served by registered post, the consumer filed no objection (the assessment being treated as final), and a later demand notice went unpaid, a recovery citation as arrears of land revenue is not illegal. The writ petitioner did not allege that unauthorised use was not found or that the provisional assessment was not served. Procedure under Section 126 of the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 was held to have been followed; the petition was dismissed. ¶ 1

PRINCIPLE TAGS

s126-procedural-strictness-notice-and-hearing

A recovery citation for electricity dues as arrears of land revenue is not illegal where a Section 126 checking found unauthorised use, a provisional assessment was served by registered post, no objection was filed (the assessment being treated as final), and a later demand notice went unpaid.. ¶ 1